

Court No. - 21

Case :- WRIT - C No. - 43397 of 2014

Petitioner :- Ram Surat

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- S.K. Das, Pravesh Kumar

Counsel for Respondent :- C.S.C.

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Vivek Kumar Birla, J.

Heard learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for the Electricity Department.

This is a dispute with regard to the continuation of a Tube Well connection. The petitioner contends that the respondent Executive Engineer has erroneously rejected the representation of the petitioner, and therefore, the same deserves to be set aside with a direction to take appropriate steps for restoring the electricity connection in the name of the petitioner.

From the facts that are on record, it appears that Civil Suit No. 478 of 2009 (Ramsurat vs. Ram Murat and three others) has been filed by the petitioner against those who are contesting the right to the said property. Not only this a dispute with regard to the partition and division of the holdings under Section 176 of U.P.Z.L.R. Act is pending before the Sub-divisional Officer, Shahganj, Jaunpur in Case No.150/2009-2010. It is because of the pendency of these two litigations that the impugned order has been passed.

What transpires is that the Executive Engineer has not exercised his discretion for granting or extending any such benefit because of the fact that the said dispute is pending and unless the title is

established it will not be appropriate to proceed with the matter. He has however carved out a third suggestion by indicating that in case both parties agree and submit an indemnity bond as per the relevant clauses of Electricity Supply Code, 2005 then in that event appropriate steps will be taken.

It is undisputed that the electricity supply of the Tube Well is permanently disconnected.

The tube well is required for the purpose of irrigation of the agricultural land for which purpose tube well has been installed which purpose is being frustrated on account of non-availability of electricity in the background of the dispute aforesaid.

In our opinion, it would be appropriate that in case the petitioner files an application either before the Civil Court or the Revenue Court where the dispute is pending for interim relief seeking permission of the court for the purpose of getting electricity connection, the same shall be subject to the outcome of any order passed by the competent court and in the event if the court grants such permission, then in that view of the matter the Electricity Department shall consider such connection either temporarily or on the basis of an indemnity bond or otherwise for the purpose of running the Tube Well so long as the dispute is not decided.

With the aforesaid observation the writ petition is **disposed of.**

Order Date :- 21.8.2014
Ajay